

18STCV10316 18STCV10316

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-08

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Case Number: 18STCV10316 Hearing Date: July 8, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 8, 2026 TRIAL DATE: NOT SET

CASE: Surinderpal S. Arora v. Saljeet Singh
and Gurpreet Bindra

CASE

NO.: 18STCV10316

MOTION FOR ATTORNEYS' FEES IN
ENFORCING SETTLEMENT AGREEMENT

MOVING

PARTY: Defendants Daljeet Singh and Gurpreet
Singh

RESPONDING

PARTY(S): Plaintiff
Surinderpal S. Arora

TENTATIVE RULING:

Defendants move for attorneys' fees. They do so based on an attorneys' fee provision in an oral settlement agreement that was reached on the record. The motion is DENIED.

The settlement agreement contains the following relevant terms: "In any dispute between the parties as to the terms of the settlement or enforcement of this settlement agreement, either this oral recitation or a written settlement agreement, the prevailing party will be awarded reasonable attorneys' fees and costs. This provision does not apply to the accounting dispute resolution process provided by this agreement."

Here, the Defendants obtained a mixed verdict on initial cross-motions to enforce the settlement agreement in the trial court. The trial court declined to award attorneys' fees in connection with its own ruling. Plaintiff appealed the denial. But Plaintiff withdrew the appeal, which was ultimately dismissed by the Court of Appeal, after the Defendants pointed out by motion that the appeal was untimely. Defendants now seek their fees incurred in connection with the unsuccessful appeal.

The Court denies the motion. Defendants, as the moving party, have not met their burden of showing that the appeal was covered by the contractual fees provision, and thus that they are entitled to fees under Civil Code section 1717.

Under the parties' agreement, fees incurred in connection with the "accounting dispute resolution process," are explicitly not recoverable. A review of the record reveals that the matters at issue in the July 2025 order that was the subject of the appeal, as well as the Court's denial of reconsideration of that order (both orders were entered by a different judicial officer) heavily involved the accounting procedure negotiated in the parties' settlement agreement.

In the instant motion, Plaintiffs try to make a distinction between the "accounting dispute resolution process" and litigation over the scope of that accounting process. Defendants suggest that the phrase "accounting dispute resolution process" meant only "specific challenges to the accountants' report" (in Defendants' words) and nothing more. Thus, according to Defendants, issues involving the scope of the accounting are not part of the "accounting dispute

resolution process.” The oral settlement agreement, however, contains no such limitation. “[A]ccounting dispute resolution process” is not a defined term. Neither party has introduced extrinsic evidence as to its meaning. Accordingly, in interpreting the phrase, the Court applies its plain meaning. “[A]ccounting dispute resolution process” is, in the Court’s view, clearly a broad enough phrase to encompass disputes over the scope of the accounting. Litigation over an accounting “process” would ordinarily include litigation over the scope of the accounting—indeed, that would be one of the primary anticipated areas of litigation. Thus, under the plain terms of the parties’ settlement, attorneys fees are not recoverable for litigation over the scope of the accounting in the parties’ agreement.

While the underlying motion to enforce the settlement agreement, and thus the appeal of that motion, may have involved some issues beyond the accounting dispute resolution process, Defendants have made no effort whatsoever to delineate any such matters. Accordingly, the Court cannot grant the motion for attorneys’ fees even in part. Defendants have simply not met their burden.

CONCLUSION:

The motion for attorneys’ fees is DENIED.

Moving party
to give notice.

IT IS
SO ORDERED.

Dated: July 8, 2026 _____

Nicholas
F. Daum

Judge
of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All

interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.